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UNITED STATES DISTRICT COURT

DISTRICT OF OREGON

PORTLAND DIVISION

RICHARD KLIEWER, on behalf of himself and all others similarly situated,
Plaintiff,
vs.
FENDER MUSICAL INSTRUMENTS CORPORATION,
Defendant.

Case No. _____

CLASS ACTION COMPLAINT FOR INJUNCTIVE AND OTHER RELIEF FOR VIOLATIONS OF THE TELEPHONE CONSUMER PROTECTION ACT, 47 U.S.C. § 227 AND THE OREGON UNLAWFUL TRADE PRACTICES ACT, ORS 646.569 & 646.607

DEMAND FOR JURY TRIAL

COMES NOW the Plaintiff, RICHARD KLIEWER, on behalf of himself and others similarly situated and complains against FENDER MUSICAL INSTRUMENTS CORP., and alleges as follows:

I. INTRODUCTION

1. The Telephone Consumer Protection Act prohibits unwanted solicitation calls.

2. Fender Musical Instruments Corp., is an abusive telemarketer – it continues text messaging consumers without consent and continues texting after the recipient asks for the calls to stop.

3. As former Senator Fritz Hollings once stated:

4. "computerized calls are the scourge of modern civilization. They wake us up in the morning; they interrupt our dinner at night; they force the sick and elderly out of bed; they hound us until we want to rip the telephone right out of the wall."

5. Because the calls were transmitted using technology capable of generating thousands of similar calls per day, Plaintiff brings this action on behalf of a proposed nationwide class of other persons who were sent the same illegal telemarketing calls.

II. PARTIES, JURISDICTION & VENUE

6. The Plaintiff is a resident of Portland Oregon and was a resident of Portland Oregon at all times material to this complaint.

7. Fender Musical Instruments Corporation, ("Defendant") is a Delaware corporation operating in Arizona with principal address at 17600 North Perimeter Drive, Scottsdale, AZ 85255.

8. According to the Oregon Secretary of State's website, Defendant's registered agent in Oregon is the Corporation Service Company at 1127 Broadway ST NE Ste. 310, Salem OR 97301.

9. This Court has subject-matter jurisdiction over the Plaintiff's claims under the federal Telephone Consumer Protection Act ("TCPA"), 47 U.S.C. § 227, pursuant to 28 U.S.C. § 1331 because those claims arise under the laws of the United States. This Court has supplemental jurisdiction over the Plaintiff's state-law claims pursuant to 28 U.S.C. § 1367(a) because they are so related to the TCPA claims that they form part of the same case or controversy.

10. This Court has specific personal jurisdiction over Defendant because Defendant purposefully directed its marketing at Oregon by sending the text message solicitations at issue to the Plaintiff, an Oregon resident, and has purposefully availed itself of the privilege of conducting business activities within Oregon, including by registering to transact business here. The Plaintiff's claims arise directly out of or relate to those activities.

11. Venue is proper in this District under 28 U.S.C. § 1391(b)(1) and (c)(2) because Defendant is subject to personal jurisdiction in this District and therefore resides here for venue purposes, and under 28 U.S.C. § 1391(b)(2) because a substantial part of the events giving rise to the Plaintiff's claims occurred in this District, where the Plaintiff resides and received many of Defendant's text messages. Assignment to the Portland Division is proper under LR 3-2.

III. FACTUAL ALLEGATIONS

Lead Plaintiff Richard Kliewer

12. For over 10 years the Plaintiff was the regular user of the cell phone number that received the calls.

13. The Plaintiff placed his own phone number on the Federal Trade Commission's National Do-Not-Call Registry on November 13, 2025.

14. The Plaintiff's phone number was tied to a cell phone that the Plaintiff used as his residential phone line.

15. The Plaintiff used his cell phone number for personal use only, as one would use what used to be referred to colloquially as a "landline."

16. He used to call and text friends and family and to live his private life.

17. Plaintiff did not consent to receiving telemarketing calls or text messages from the Defendant prior to receiving the calls at issue and Plaintiff twice used reasonable means to demand the Defendant to stop calling and texting.

The Calls

18. For the last four years, the Plaintiff has received unwanted solicitation calls and text messages advertising from the Defendant.

19. The Defendant sells goods and services through its website https://fender.com.

20. The Plaintiff is not and has never been a Fender customer or client.

21. The following is a non-exhaustive list of text messages the Plaintiff received from the Defendant over the last four years, each one promoting its products and services.

[Transcription note: the filed table runs to about sixty entries from 9/5/2025 to 2/25/2026, all from calling number 71642. Only the first and last rows are shown here.]

Call #	Date	Calling #
1	9/5/2025	71642
2	9/9/2025	71642
3	9/12/2025	71642
4	9/14/2025	71642
…	…	…
58	2/24/2026	71642
59	2/25/2026	71642

22. On 11/10/2025 the Plaintiff used a reasonable written means to send Fender a do-not-call request and stated a desire to not be called and texted again.

23. On 11/13/2025 the Plaintiff registered his phone number on the FTC's national do-not-call registry.

24. On 12/29/2025 the Plaintiff used a reasonable written means to send Fender a do-not-call request and stated a desire to not be called and texted again. His communication included that he was a flagger working a significant number of hours and the text messages were a distraction from his job.

25. On 11/10/2025 the Plaintiff sent the Defendant a letter demanding the Defendant to put his phone number on their do not call list.

26. Despite this, the Defendant continued to send text messages to Plaintiff from their SMS short code 71642 promoting Fender's goods and services.

27. On 12/29/2025 the Plaintiff again sent the Defendant a letter demanding the Defendant to put his phone number on their do not call list and specifically told it that he was a flagger working a significant number of hours and the text messages were a distraction from his job.

28. Despite this, the Defendant continued to send the Plaintiff text messages from its SMS short code 71642 promoting Fender's goods and services.

29. The Defendant sent the Plaintiff more than two similar text messages more than 10 days after they received the Plaintiff's second do-not-call request.

30. Like the previous texts, none of these text messages identified the legal name of the entity whose goods and services were being solicited, or the legal name of the entity who transmitted the commercial electronic text messages.

31. These calls and texts annoyed and harassed the Plaintiff, wasted his time, and invaded his privacy and seclusion.

IV. CLASS ACTION

32. The Plaintiff brings this class action lawsuit pursuant to FRCP 23 and seeks certification of the following Classes:

(a) NATIONWIDE CLASSES. DNCR Class: The Plaintiff and all persons within the United States: (1) whose residential telephone numbers were on the National Do Not Call Registry for at least 31 days; (2) the person received more than one telemarketing call from the Defendant, or from a third party acting on the Defendant's behalf, (3) within a 12-month period; (4) within the four years prior to the filing of the Complaint.

(b) Procedures Class: All persons within the United States to whom: (1) the Defendant, or a third party acting on the Defendant's behalf, sent (2) two or more telemarketing calls or text messages in a 12-month period, (3) who were not current customers of the Defendant at the time of the calls, (4) who had previously asked for the calls to stop and (5) within the four years prior to the filing of the Complaint.

(c) OREGON CLASSES. ORS Do Not Call Class: All Oregon residents who, on or after January 1, 2026, and within one year before the filing of this Complaint, received a text message or call from Defendant, or from a third party acting on Defendant's behalf, encouraging the purchase of Defendant's goods or

services, at a time when that telephone number had been listed on the National Do-Not-Call Registry for at least 31 days.

33. Numerosity: The exact number of Class members is unknown but based on the en masse nature of telemarketing it is believed to be at least thousands of persons at this time, such that individual joinder in this case is impracticable. Class members can be easily identified through Defendants' records.

34. Commonality: There are many questions of law and fact common to the claims of Plaintiff and members of the Classes.

35. Typicality: The Plaintiff's claims are typical of the claims of other Class members in that Plaintiff, and Class members, sustained damages arising out of the Defendants' telemarketing calls and text messages and Class members sustained similar injuries and damages as a result of the Defendants' uniform illegal conduct.

36. Adequacy & risk of inconsistency: Plaintiff will fairly and adequately represent and protect the interests of the Classes and has retained counsel competent and experienced in complex class actions to vigorously prosecute this action on behalf of the Classes. The Plaintiff has no interests that conflict with, or are antagonistic to those of, the Classes, and the Defendants have no defenses unique to Plaintiff.

V. CAUSES OF ACTION

Allegations Applicable to All Counts

37. The Defendant is a "seller" as defined by 47 CFR § 64.1200(f)(10).

38. The Defendant is a "telemarketer" as defined by 47 CFR § 64.1200(f)(12).

39. All of the calls the Defendant initiated to the Plaintiff and proposed Classes were "telephone solicitations" as defined by 47 CFR § 64.1200(f)(15).

40. The Defendant made "telephone solicitations" as defined by ORS 646.567(5) to the Plaintiff.

41. The calls and texts were initiated to encourage the Plaintiff to purchase goods and/or services from Fender.

42. The Ninth Circuit has long held that a text message is a "call" under the TCPA. Satterfield v. Simon & Schuster, Inc., 569 F.3d 946, 952–54 (9th Cir. 2009). Each text the Defendant sent the Plaintiff was a "telephone call" under 47 U.S.C. § 227(c)(5).

43. The phone chirping and buzzing from unwanted text messages is obnoxious, an invasion of privacy, a trespass into the Plaintiff's property and seclusion, and a waste of time.

44. Looking at who is texting and removing the unwanted text messages takes time that could be spent doing other things, and these calls do have a real, if small, cost in electricity and life of the phone.

45. Trying to figure out who is behind the text message is obnoxious and costs the Plaintiff time.

Count 1 – Telephone Consumer Protection Act, 47 U.S.C. § 227(c)

46. Pursuant to 47 U.S.C. § 227(c), it is unlawful for a person to initiate telephone solicitation to residential telephone subscribers who have registered his or her telephone number on the national do-not-call registry of persons who do not wish to receive telephone solicitations that is maintained by the Federal Government.

47. The Plaintiff re-alleges the previous paragraphs supra.

48. The Plaintiff registered his telephone number on the national do-not-call registry of people who do not wish to receive telephone solicitations that is maintained by the Federal Government more than 31 days prior the calls subject to 47 CFR § 64.1200(c)(2).

49. The Defendant violated 47 U.S.C. § 227(c)(2) by calling and texting the Plaintiff's telephone without invitation or consent.

50. No exception under 47 C.F.R. § 64.1200 or 47 U.S.C. § 227 applies to the communications.

51. The Plaintiff told the Defendant multiple times that he wasn't interested in their services and specifically asked the Defendant to stop contacting him, yet the Defendant ignored those requests and continued soliciting the Plaintiff by telephone.

52. The Defendant violated 47 U.S.C. § 227(c) on no fewer than fifty-eight (58) occasions.

53. The Plaintiff has been damaged and injured as a result of these actions.

54. The Defendant's actions were willful or knowing, and therefore the Plaintiff's damages should be trebled.

VI. JURY DEMAND

55. The Plaintiff demands a trial by jury.

VII. PRAYER FOR RELIEF

56. WHEREFORE, the Plaintiff prays that the proposed Classes be certified under FRCP 23, and that the Plaintiff and his counsel be appointed to represent the Classes and for judgment be entered against the Defendants for:

(a) The Plaintiff's actual damages;

(b) For statutory damages of $1,500.00 per violation of the Telephone Consumer Protection Act;

(c) For statutory damages of $200.00 per violation of the Oregon Unlawful Trade Practices Act for the Plaintiff, and $200.00 per member of the ORS Do Not Call Class under ORS 646.638(8)(a).

(d) For punitive damages pursuant to ORS 646.638(1) & ORS 646.638(8)(b);

(e) For treble damages pursuant to 47 U.S.C. § 227(c)(5)(C);

(f) For the Plaintiff's costs and attorney's fees pursuant to ORS 646.638(3);

(g) For all injunctive relief as pleaded for above;

(h) For any and all other relief this Court deems proper.

DATED: October 13, 2026

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